

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 955

Introduced by Hardin, 48.

Read first time January 12, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Pharmacy Practice Act; to amend section
- 2 38-2867.03, Revised Statutes Cumulative Supplement, 2024; to allow a
- 3 physician assistant prescribing under a collaborative agreement to
- 4 enter into a practice agreement with a pharmacist; and to repeal the
- 5 original section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 38-2867.03, Revised Statutes Cumulative
2 Supplement, 2024, is amended to read:

3 38-2867.03 (1) A pharmacist may enter into a practice agreement as
4 provided in this section with (a) a licensed health care practitioner
5 authorized to prescribe independently or (b) a physician assistant under
6 a collaborative agreement pursuant to section 38-2055 to provide
7 pharmaceutical care according to written protocols. The pharmacist shall
8 notify the board of any practice agreement at the initiation of the
9 agreement and at the time of any change in parties to the agreement or
10 written protocols. The notice shall be given to both the Board of
11 Pharmacy and the board which licensed the health care practitioner. The
12 notice shall contain the name of each pharmacist participating in the
13 practice agreement and each licensed health care practitioner authorized
14 to prescribe independently or each physician assistant under a
15 collaborative agreement participating in the practice agreement and a
16 description of the therapy being monitored or initiated.

17 (2) A copy of the practice agreement and written protocols shall be
18 available for review by a representative of the department. A copy of the
19 practice agreement shall be sent to the Board of Pharmacy upon request by
20 the board.

21 (3) A practice agreement shall be in writing. Each party ~~pharmacist~~
22 ~~participating in the agreement and each licensed health care practitioner~~
23 ~~authorized to prescribe independently participating in the agreement~~
24 shall sign the agreement and the written protocols at the initiation of
25 the agreement and shall review, sign, and date the documents every two
26 years thereafter. If a physician assistant is prescribing under a
27 collaborative agreement, the supervising physician shall also sign the
28 practice agreement. A practice agreement is active after it is signed by
29 all the parties listed in the agreement.

30 (4) A practice agreement and written protocols cease immediately
31 upon (a) the death of either the pharmacist or the practitioner, (b) the

1 loss of license to practice by either the pharmacist or the practitioner,
2 (c) a disciplinary action limiting the ability of either the pharmacist
3 or practitioner to enter into practice agreement, or (d) the individual
4 decision of either the pharmacist or practitioner or mutual agreement by
5 the parties to terminate the agreement.

6 (5) A pharmacist intern may participate in a practice agreement
7 without expressly being mentioned in the agreement if the pharmacist
8 intern is supervised by a pharmacist who is a party to the agreement.

9 **Sec. 2.** Original section 38-2867.03, Revised Statutes Cumulative
10 Supplement, 2024, is repealed.